

Thirdly. As to survivorship.

1. **Survivorship of powers.**—The survivorship of the *estate* carries with it the survivorship of such *powers* as are annexed to the trust. If a *mere* power be given to A., B., and C., and one of them die, it is perfectly clear that the power cannot be exercised by the survivors: but if trustees have an *equitable* power annexed to the trust, and forming an integral part of it, as if an estate be vested in three trustees upon trust * to sell, then, as the power [*611] is coupled with an interest, and the interest survives, the power also survives (a).

Trust powers.—The principle that *trust powers* survive with the *estate* appears to be as old as the time of Lord Coke, for he observes, “If a man *deviseth land to his executors to be sold*, and maketh two executors, and the one dieth, yet the survivor may sell the land, because as the *estate*, so the *trust* shall survive; and so note the diversity between a *bare trust* and a *trust coupled with an interest*” (b). At the present day a *trust*, that is, a *power imperative*, whether a bare power, or a power coupled with an interest, would be equally carried into execution in the *forum* of a Court of equity; for the maxim now is, The trust or power imperative is the estate. But in the time of Lord Coke, had a bare power been devised to A. and B. to sell an estate, as for payment of debts, the authority was one which A. and B. during their joint lives were compellable by *subpœna* in Chancery to execute for the benefit of the creditors; but if A. happened to die before the sale was carried into effect, the trust was extinguished, and the heir who had always retained a right to the intermediate rents and profits was then seised of the absolute and indefeasible inheritance. But in case the testator had *devised the estate* to A. and B. to sell for payment of debts, then, as the trust was not a mere power, but a power coupled with an interest, it received a more

(a) *Lane v. Debenham*, 11 Hare, 188; and see *Gouldsb. 2*, pl. 4; *Peyton v. Bury*, 2 P. W. 628; *Mansell v. Vaughan*, Wilm. 49; *Eyre v. Countess of Shaftesbury*, 2 P. W. 108, 121, 124; *Butler v. Bray, Dyer*, 189, b; *Byam*

v. Byam, 19 Beav. 58; *Jenk. 44*; *Co. Lit. 112*, b. 113, a; *Flanders v. Clark*, 1 Ves. 9; *Potter v. Chapman, Amb. 100*; *Jones v. Price*, 11 Sim. 557.

(b) *Co. Lit. 113*, a; and see *Ib. 181*, b.